

STATE OF NEW YORK

879--A

Cal. No. 479

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. MAY, COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Agriculture -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the agriculture and markets law, in relation to establishing the "garden protection act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "garden
2 protection act".

3 § 2. Legislative purpose. The purpose of this act is to encourage and
4 protect the sustainable cultivation of fresh produce at all levels of
5 production, including on residential property for personal consumption
6 or non-commercial sharing.

7 § 3. The article heading of article 2-C of the agriculture and markets
8 law, as added by chapter 862 of the laws of 1986, is amended to read as
9 follows:

10 COMMUNITY AND HOME GARDENS

11 § 4. Section 31-g of the agriculture and markets law is amended by
12 adding two new subdivisions 7 and 8 to read as follows:

13 7. "Home vegetable garden" shall mean any garden located on residen-
14 tial property where vegetables, herbs, fruits, flowers, pollinator
15 plants, leafy greens, or other edible plants are cultivated, or other
16 plants commonly associated with such gardens.

17 8. "Native plant garden" or "pollinator garden" shall mean any garden
18 located on residential property where plants native to the state,
19 composed of a variety of nectar and pollen-rich flowers with a wide
20 range and variety of shapes, sizes, and colors, that blossom at various

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 times throughout the year, are cultivated, and may also include other
2 native or supportive plants, including those without flowers.

3 § 5. The agriculture and markets law is amended by adding a new
4 section 31-k to read as follows:

5 § 31-k. Right to cultivate home vegetable, native plant, and pollina-
6 tor gardens. 1. Notwithstanding any other law, rule or regulation, any
7 person may cultivate home vegetable gardens, native plant gardens,
8 and/or pollinator gardens on their own property, or on the private prop-
9 erty of another with the permission of the owner of such property, in
10 any county, municipality, or other political subdivision of this state.

11 2. A municipality in the state shall not regulate gardens in a manner
12 inconsistent with this section.

13 3. This section shall not preclude the adoption of a rule, regulation
14 or local ordinance of general nature that does not specifically regulate
15 home vegetable gardens, native plant gardens, and/or pollinator gardens,
16 including, but not limited to, regulations and ordinances relating to
17 height, setback, water use, fertilizer use, or control of invasive or
18 unlawful species, provided that any such rule, regulation or ordinance
19 does not have the effect of precluding home vegetable gardens, native
20 plant gardens, and/or pollinator gardens.

21 § 6. This act shall take effect immediately.